

		The terminating, issue, or evidentiary sanctions proposed by Defendant ask the Court to assume the ACU would have provided evidence favorable to Defendant. The loss of evidence was likely due to the lack of diligence of Plaintiff's counsel or its storage vendor. However, based on the evidence before the Court at this stage, it remains speculative whether the ACU would have provided evidence more favorable to Plaintiff or Defendant. Defendant may make such arguments to the jury and/or request related jury instructions regarding loss of evidence. Defendant does not request monetary sanctions in the motion. Based on the foregoing, the sanctions requested in the motion go beyond the purpose of sanctions provided by the Code of Civil Procedure. Therefore, the motion is denied as to discovery sanctions without prejudice to Defendant's ability to seek relief via other means.
12	Uriarte v. Van Express, Inc. 2021-01221840 Motion to Vacate Judgment of Dismissal	Plaintiffs Richard Uriarte and Sylvia Uriarte's unopposed motion to vacate the Judgment of Dismissal dated November 10, 2025, is DENIED. Plaintiffs move for mandatory relief under Code of Civil Procedure section 473, subdivision (b) which provides, "whenever an application for relief is made <u>no more than six months</u> after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk ..., or (2) resulting default judgment or dismissal entered against his or her client . . ." [Emphasis added.] Here, the application for relief is untimely. The court ordered the Complaint dismissed on 10/7/25, but Plaintiff did not file the Motion to vacate until 4/21/25, more than six months after the dismissal. (ROA 224, 254) Although the request to vacate the Judgment of Dismissal ("Judgment") was timely filed within 6 months of the entry of the Judgment, it would be futile to set aside the Judgment. (See <i>Bowen v. Cowett</i> (1963) 216 Cal.App.2d 766, 771 ["Since setting aside the formal judgment entered March 13, 1959 would still leave the decisions of February 16, 1959 operative and invulnerable to Section 473 it would be futile to set aside said judgment. For that reason the judgment of dismissal of appellants' suit against respondent was proper."].) Plaintiffs to give notice.
13	Luna v. Hyundai motor America 2023-01339475	The Motion for Statutory Penalties by Plaintiffs Santiago Uriel Flores Luna and Jonathan Flores Lunais is DENIED. Plaintiffs seek penalties of \$50 per day for Defendant's failure to timely complete the vehicle repurchase pursuant to the

	Motion for Mandatory Statutory Penalties under CCP 871.27 (g)(2)	parties' settlement agreement. The motion is based on Code of Civil Procedure section 871.27(g)(2), which provides, "The defendant shall promptly process any agreed-upon motor vehicle restitution or replacement pursuant to this section and complete the restitution or replacement within 30 days from the date of receipt of a signed release from the buyer or lessee's counsel. The defendant's failure to do so shall result in a mandatory penalty of fifty dollars (\$50) per day until the settlement is completed, unless the parties stipulate otherwise. The consumer shall comply in good faith with requests from the manufacturer for reasonable documentation required to complete the requested restitution or replacement of the motor vehicle. In the event the consumer fails to comply in good faith and delays the restitution or replacement, the manufacturer shall not be subject to the daily fifty-dollar (\$50) penalty." On 6/15/26, the Court granted Plaintiffs' motion to enter judgment on the settlement agreement. As discussed in the 6/15/26 order, Defendant failed to timely schedule the surrender and Plaintiffs failed to timely provide current registration pursuant to the agreement. Defendant opposes this motion on the grounds that section 871.27, which was enacted effective January 2025, did not exist when this action was filed in 2023, and cannot apply retroactively. The parties' settlement agreement did not contain a penalty provision. Moreover, Defendant argues Plaintiffs have not complied with their documentation obligations under the agreement. Although there is no case law addressing this specific issue, it appears section 871.27 applies to this case because it provides procedural mechanisms regarding settlement of lemon law cases, not a statute of limitations or other substantive law that cannot fairly be applied to previously-filed cases. Nonetheless, assuming section 871.27 applies, Plaintiffs have not shown statutory penalties are appropriate here. The parties stipulated to specified settlement terms including Plaintiffs providing current registration which Plaintiffs did not timely comply with. Defendant argues this prevented it from completing the vehicle repurchase earlier. The Court did not resolve Plaintiffs' motion for entry of judgment until 6/15/26. Defendant has shown that Plaintiffs did not promptly comply with their duty to provide documentation, so statutory penalties are not mandatory under the statutory language of section 871.27.
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